

Petitioner and Guardian Ad Litem Alexis del Torro filed on December 12, 2025 a Petition for Approval of Compromise of Minor Navaeh del Torro's ("Minor") Claim Against Alejandro Ramon Sanchez-Salinas ("Petition"). For the reasons stated below, the Court **grants** the Petition

Background

On July 6, 2026, Alejandro Ramon Sanchez-Salinas carjacked the vehicle owned by Jose Juan Fierro. This resulted in a collision that killed Angela Priscilla Fierro. Minor del Torro is the heir of the estate of Decedent Fierro. Minor del Torro was not present at the carjacking or collision but asserts claims involving Jose Juan Fierro's insurer's uninsured motorist claims as an heir. Petitioner avers that Minor has recovered completely.

At this time, the insurer has offered \$25,000, to be placed in an annuity payable in 2 amounts of \$23,452.61 in June and July 2040, when Minor is 18 years old. Guardian Ad Litem proceeded on these issues in pro per. There are no deductions for any expenses.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on December 4, 2025.

Law & Motion
ADD-ON

21. 9:00 AM CASE NUMBER: C25-02681
CASE NAME: 98 LA COLIMA LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT FILED BY: 98 LA COLIMA LLC

TENTATIVE RULING:

Please see Line 13.

22. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING ON SUMMARY MOTION JUDGMENT RE PLTFS CLAIMS
FILED BY: AMERICAN EQUIPMENT COMPANY
TENTATIVE RULING:

Defendant American Equipment Company, Inc. (aka AMECO) moves for summary judgment with respect to the complaint by plaintiff, Shalini Sharma. The motion is **denied**, as discussed below. Even assuming defendant had met its initial burden to show entitlement to judgment as a matter of law on any of the causes of action, plaintiff has shown triable issues of material fact that preclude both summary judgment and adjudication.

I. Background

AMECO's undisputed facts describe the factual background of this action. Plaintiff Shalini Sharma worked as a heavy equipment operator. (SSUMF, Fact. No. 1, and Plaintiff's Response.) She was working for ARS Aleut Construction LLC, Inc. ("ARS") on a construction project at the Military Ocean Terminal Concord ("MOTCO") when she was injured by a large piece of glass that fell out of the cab door of a grader she was operating. (SSUMF, Fact. Nos. 2 and 22, and Plaintiff's Responses.)

The grader had been procured by moving party AMECO for ARS's use. AMECO, which is a site services company that either leases its own equipment or sources used equipment from other vendors to "support construction efforts." AMECO procured the grader through defendant, NorCal Rental Group, LLC ("NorCal") and/or its affiliate, co-defendant Peterson-Cat, who are in the business of leasing construction equipment. (SSUMF, Fact. Nos. 4-5, 8-9, 34, and Plaintiff's Responses.) ARS was dismissed from this lawsuit based on workers' compensation coverage. (SSUMF, Fact. No. 3, and Plaintiff's Response.)

When AMECO sought to obtain the grader, none of its existing vendors had a suitable grader except NorCal, which at that time was a new vendor for AMECO. (SSUMF, Fact. No. 10, and Plaintiff's Response.) AMECO and NorCal agreed NorCal would provide a Caterpillar 140M Motor Grader with an auto-leveling system to ARS for use at the MOTCO construction site. (SSUMF, Fact. No. 11, and Plaintiff's Response.) The specifics concerning the rental agreement between AMECO and NorCal are disputed and not particularly relevant to the claims by plaintiff against AMECO. (SSUMF, Fact. Nos. 12-13, and Plaintiff's Response.)

On or about August 17, 2020, NorCal delivered a grader to the jobsite. (SSUMF, Fact. No. 14, and Plaintiff's Response.) No one from AMECO was ever present at the jobsite and AMECO did not otherwise come into contact with the grader. (SSUMF, Fact. No. 15, and Plaintiff's Response.) NorCal did not disclose to AMECO that it was providing an M2 series grader instead of the M3 series that AMECO had ordered for ARS. (SSUMF, Fact. No. 16, and Plaintiff's Response.) ARS did not reject the non-compliant equipment or alert AMECO to any issues with the grader upon delivery. (SSUMF, Fact. No. 17, and Plaintiff's Response.)

Based on a request from ARS, someone referred to only as the "Trimble Guy" came to the MOTCO jobsite to inspect the grader but performed no repairs. (SSUMF, Fact. No. 18, and Plaintiff's Response.) Plaintiff claimed at her deposition that this "Trimble Guy" represented to her that the grader was a "rebuild" and not an original Caterpillar 140M grader. (SSUMF, Fact. No. 19, and

Plaintiff's Response.) AMECO had nothing to do with any modifications to the grader. (SSUMF, Fact. No. 20, and Plaintiff's Response.)

Despite reporting multiple issues with the grader to ARS, including to the door mechanism, the plaintiff continued to use the machine at ARS's instruction. (SSUMF, Fact. No. 21, and Plaintiff's Response.) A pane of glass fell from the grader, though it remained largely intact. (SSUMF, Fact. No. 24, and Plaintiff's Response.) Plaintiff continued to work at the jobsite after the accident. (SSUMF, Fact. No. 25, and Plaintiff's Response.)

Plaintiff initially filed suit against ARS in Contra Costa County in March 2021. (SSUMF, Fact. No. 26, and Plaintiff's Response.) Plaintiff named Caterpillar Inc., the actual manufacturer of the grader, as a defendant in her third amended complaint but has since voluntarily dismissed that entity, focusing instead on claims that the grader had been modified from its original condition. (SSUMF, Fact. No. 27, and Plaintiff's Response.) AMECO did not manufacture, design, or own the grader. (SSUMF, Fact. Nos. 28-30, and Plaintiff's Responses.) AMECO did not take any steps to help bring the grader to the *initial* consumer market. (SSUMF, Fact. No. 31, and Plaintiff's Response.) AMECO had no ability to influence the manufacturing process of the grader. (SSUMF, Fact. No. 32, and Plaintiff's Response.)

AMECO has no relationship, whether direct or indirect, with Caterpillar, the manufacturer of the grader, with respect to the grader's design or manufacture, though parties dispute the extent to which AMECO "distributed" the grader. (SSUMF, Fact. Nos. 33 and 35, and Plaintiff's Responses.) The grader was not new at the time that it was delivered to the MOTCO jobsite. (SSUMF, Fact. No. 36, and Plaintiff's Response.) AMECO relies on third party vendors to ensure that the equipment they provide is safe and in good working order. (SSUMF, Fact. Nos. 41, 49, and Plaintiff's Responses.) AMECO asserts this was justified and in conformance with custom and practice. (SSUMF, Fact. Nos. 43-48, and Plaintiff's Responses.) AMECO also argues this is consistent with its rental agreement. (SSUMF, Fact. No. 42, and Plaintiff's Response.)

Plaintiff does not know anything about AMECO and has never interacted with any AMECO representative. (SSUMF, Fact. No. 37, and Plaintiff's Response.) ARS, as the general contractor, was responsible for obtaining the equipment necessary to complete the construction work at the MOTCO jobsite. (SSUMF, Fact. No. 40, and Plaintiff's Response.)

Plaintiff offers additional facts she contends are material, and which she contends create triable issues here. Plaintiff asserts AMECO's reliance on a new vendor without any proven performance was unreasonable. (Plaintiff's Additional Material Fact No. 10, and AMECO's Response.)

Overall, the facts provided by both parties indicate AMECO did not conduct significant independent investigation concerning the condition or safety of the grader, and never received any information that would suggest the grader was unsafe prior to the plaintiff's accident.

In March 2021, plaintiff filed this suit to recover for her injuries. The currently operative complaint is the Third Amended Complaint, filed on July 26, 2022. The causes of action alleged in that complaint are (1) Negligence – Products Liability; (2) Strict Liability – Products Liability; (3) Breach of Implied Warranty; and (4) Negligence.

II. Motion and Opposition

AMECO moves for summary judgment or, in the alternative, summary adjudication. The notice of motion describes the issues for summary adjudication as each of the causes of action in the

Third Amended Complaint.

AMECO argues it acted only as a “broker” and was thus not responsible for the grader’s condition. It asserts that plaintiff cannot establish strict liability as a matter of law and that, because strict liability is not available, neither is negligence products liability. As to the implied warranty cause of action, AMECO argues that its lack of contractual privity with plaintiff prohibits this cause of action. Finally, with respect to ordinary negligence, AMECO argues there is nothing it could have done that would have prevented the harm here.

In support of the motion, defendant provides the SSUMF, a declaration from its the Vice President of Finance, and a declaration from counsel which attaches various litigation documents filed in this Court and in the U.S. District Court for the Northern District of California, documents provided in discovery, and excerpts of various deposition transcripts.

Plaintiff opposes the motion. She argues, as a preliminary matter, that the motion is untimely because it is scheduled for hearing less than 30 days prior to trial. She also argues that AMECO fails to shift the initial burden and, even if it does so, there are triable issues of fact. In support of her opposition, plaintiff submits a declaration from counsel which attaches excerpts of deposition transcripts as well as documents provided in discovery. Plaintiff provides her own additional material facts, and objects to evidence provided by AMECO.

Plaintiff also responds to the SSUMF, though the Court notes she has identified multiple facts as “disputed” with citations to her own additional facts. This is *not* in compliance with the summary judgment statute or California Rules of Court, which require citations to evidence. (Code Civ. Proc., § 437c (b)(3); Cal. Rules of Court, Rule 3.1350 (f)(2).) This approach obfuscates whether there is actually a dispute of fact (contrary to the policy behind the separate statement requirement) and plaintiff’s counsel is cautioned to follow these rules in the future.

AMECO provides a reply brief as well as a declaration from its attorney and responses to plaintiff’s additional material facts.

III. Evidentiary Matters

Plaintiff’s objections to the Declaration of Morgan Tiller, the Vice President of Finance for AMECO, based on lack of foundation, are **sustained**. (See Volume of Evidence 3 of 3 in Support of Motion, Ex. K.) The only foundational evidence in the declaration is in the first paragraph and is insufficient to provide the necessary background. (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 692, fn. 1; see also *Roy Brothers Drilling Co. v. Jones* (1981) 123 Cal.App.3d 175, 182, 176 Cal. Rptr. 449 [requirements of Code Civ. Proc., § 437c, subd. (d), are not met merely by reciting the conclusion the declarant can competently testify; the declaration must set forth facts establishing the declarant's competence].)

In addition to the document entitled “Objection to Evidence Provided with the Motion for Summary Judgment,” plaintiff also raises objections within the response to the separate statement as to multiple facts. But there is no authority providing for “objections” to facts; facts can only be disputed or undisputed. (See Code Civ. Proc, § 437c, subd. (b)(3); Cal. Rules of Court, Rule 3.1350(f)(2).) To the extent these objections to facts target the underlying evidence for reasons not articulated in the separate objections document, they are **overruled**.

IV. Standard

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by

admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff's case or a complete defense to plaintiff's action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to a cause of action -or a defense thereto. (Code of Civil Procedure § 437c, subd. (p)(2).) A plaintiff may not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists. (*Ibid.*)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party's evidence and liberally construe the opposing party's evidence. (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass'n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

V. Discussion

A. Timeliness of Motion

Plaintiff argues the motion is untimely and should not be entertained on its merits. The summary judgment statute does require that the motion "shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c (a)(3).)

AMECO asserts that the date was scheduled by the Court and therefore good cause has already been established for a hearing within 30 days of trial. Limited availability for MSJ hearings further delayed the hearing an additional week (instead of April 16, the motion is now being heard on April 23).

Because AMECO's motion was filed and served more than 80 days prior to the hearing, sufficient notice as required by the summary judgment statute was provided. The Court's own scheduling limitations constitute good cause for the setting of the hearing within 30 days of trial. The motion is therefore entertained on the merits.

B. Issue No. 1 - Negligent Products Liability

Regarding the first cause of action, AMECO argues it fails because the claim for strict product liability fails. The premise is incorrect. In California, if a lessor in the business of leasing supplies a defective product for a profit, the doctrine of strict liability in tort applies. (*Price v. Shell Oil Co.* (1970) 2 Cal. 3d 245, 253-254; see also *Fakhoury v. Magner* (1972) 25 Cal.App.3d 58, 63-64.)

With respect to negligence, AMECO argues the standard is the same, but that a negligent act must also be shown with respect to this cause of action. Establishing negligent rental of products requires a plaintiff to show a failure by the defendant to use reasonable care to (1) inspect the

products for defects; (2) make them safe for their intended use; and (3) adequately warn of any known dangers. (CACI 1224.) While AMECO criticizes the use of CACI as a standard, the instruction is based on Civil Code, § 1955, which states that a lessor of personal property must “put it into a condition fit for the purpose for which he or she leases it, and repair all deteriorations thereof not occasioned by the fault of the lessee and not the natural result of its use.”

Plaintiff’s first cause of action alleges that defendants “are liable for a myriad of certain acts, wrongs and/or omissions, each and all amounting to negligence.” There is not any list of specific actions plaintiff alleges breached AMECO’s duty. Instead, she alleges several specifics, such as failure to warn, and also alleges “[o]ther acts of negligence to be detailed at trial.”

Here, AMECO’s moving papers do not attempt to demonstrate which acts plaintiff intends to establish that qualify as a breach. It provides no contention interrogatories that might limit such universe of facts. Instead, AMECO attempts to anticipate plaintiff’s theory. AMECO does not attempt to show any inspection by AMECO or any significant investigation into the condition of the grader. AMECO does not assert a representative was sent to inspect the grader, or that photographs and repair records were obtained, etc. As a result, plaintiff’s arguments in the opposition concerning the lack of investigation itself constituting breach highlight that AMECO fails to meet its burden to show entitlement to judgment as a matter of law.

AMECO argues it was entitled to rely on others to ensure the grader was “rent-ready.” Whether reliance on others to inspect the equipment constitutes a breach of AMECO’s duty as a lessor is a question of fact not settled by the evidence presented.

Assuming AMECO had satisfied its initial burden, there are still disputes of material fact, as highlighted by plaintiff’s response to the SSUMF (see Fact Nos. 35, 48, and plaintiff’s responses) and AMECO’s own responses to plaintiff’s Additional Material Facts, many of which AMECO concedes are “disputed.” Inclusion of any fact in the separate statement concedes the materiality of that fact. (See *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521 and *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

Summary adjudication is denied on the first cause of action.

C. Issue No. 2 – Strict Product Liability

AMECO argues that for plaintiff to prevail, she must show either a manufacturing defect, design defect, or failure to warn. (*Anderson v. Owens-Corning Fiberglas Corp.* (1991) 53 Cal.3d 987, 995.) In its moving papers, AMECO does not seek to establish that the grader lacked a defect, or that the difference in model that was provided versus promised had no effect. Instead of directing its evidence to the *lack* of defect or *adequacy* of any warning, AMECO contends it was not the manufacturer or designer. The undisputed facts *do* support AMECO was not the manufacturer or designer. AMECO did not manufacture or design the grader (see SSUMF Fact Nos. 28-29), but strict product liability can be found against lessors, as noted above. (*Price, supra*, 2 Cal.3d at 250, 253–254 [strict liability in tort is applicable to professional or commercial bailors in the same manner as to sellers].)

The motion’s analysis ignores the role AMECO did play, which was to rent plaintiff’s employer the unsafe equipment. AMECO points out that plaintiff has dismissed Caterpillar, the actual manufacturer of the grader, but this sort of tactical litigation decision by plaintiff does not establish an absence of liability on AMECO’s part. Causation is generally a question for the jury.

Assuming AMECO had satisfied its initial burden, there are still disputes of material fact, as highlighted by plaintiff's response to the SSUMF (see Fact Nos. 86, and plaintiff's response) and AMECO's own responses to plaintiff's Additional Material Facts, many of which AMECO concedes are "disputed." Inclusion of any fact in the separate statement concedes the materiality of that fact. (See *Insalaco, supra*, 49 Cal.App.5th at 521 and *Nazir, supra*, 178 Cal.App.4th at 252.)

Summary adjudication is denied as to the second cause of action.

D. Issue No. 3 – Breach of Implied Warranty

AMECO contends that the third cause of action fails because it was not in privity with plaintiff. AMECO cites case law which states that "[p]rivacy of contract is a prerequisite in California for recovery on a theory of breach of implied warranties of fitness and merchantability." (*Blanco v. Baxter Healthcare Corp.* (2008) 158 Cal.App.4th 1039, 1058-1059.) Notably, none of the facts in the SSUMF state that there was *no* privity with plaintiff.

While this particular fact would likely not have been disputed, such a fact is fundamental to showing that lack of privity bars the claim. Plaintiff's opposition raises, for the first time, a theory pursuant to Commercial Code section 10213, specifically relating to an implied warranty for a particular purpose in rental transactions. This section was not originally pleaded, but plaintiff did plead "under the law of warranties as expressed in the Uniform Commercial Code." Plaintiff may not, and need not, amend. AMECO had the burden of isolating the facts and theories on which plaintiff will rely in order to show a lack of any material disputes.

Summary adjudication is therefore denied as to the third cause of action.

E. Issue No. 4 – Negligence

As to the fourth cause of action for general negligence, the reasons discussed above for denial of summary adjudication with respect to negligent products liability apply with equal force to this theory, which may or may not be duplicative (since a plaintiff may not recover the same damages twice, duplication poses no risk for the purposes of trial). The assertions made by AMECO in the moving papers fail to address plaintiff's actual theory (which may include, but is not limited to failing to conduct a reasonable inspection of the equipment prior to the rental).

Summary adjudication is therefore denied as to the fourth cause of action.

F. Additional Material Factual Disputes

Many of AMECO's own responses to plaintiff's Additional Material Facts contend the facts are "disputed." Such a designation, without mention of the materiality or lack thereof, concedes materiality.

Accordingly, the motion for summary judgment must be denied.

23. 9:00 AM CASE NUMBER: MSC21-00588

CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

HEARING ON SUMMARY MOTION JUDGMENT RE NORCAL'S AND PETERSON HOLDING COMPANY'S CLAIMS

FILED BY: AMERICAN EQUIPMENT COMPANY

TENTATIVE RULING: